

The Defendant made payments of \$4,562.94.

Costs are \$583.61.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$2,731.61.

Plaintiff to file order on Motion, as well as submit Judgment.

7. 9:00 AM CASE NUMBER: L25-02967

CASE NAME: CAPITAL ONE N.A. VS. LAURA ZEIDAN

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: CAPITAL ONE N.A.

***TENTATIVE RULING**

Background

Plaintiff filed a Motion, on 5/12/26, to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Mail service was completed at an address for the counsel of Defendant on 5/12/26.

Though counsel filed a notice of substitution of attorney on 5/22/26, there was ample time for counsel to receive notice of the Motion while counsel was still representing the Defendant. Thus, this court finds that Defendant received notice.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$10,227.22, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$0.

Costs are \$523.61.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$10,750.83.

Plaintiff to file Order on Motion, as well as submit Judgment, and to serve Defendant with copy of filed Order.

8. 9:00 AM CASE NUMBER: L25-03662

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. DESMOND BURNS

*HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION

FILED BY: JPMORGAN CHASE BANK, N.A.

TENTATIVE RULING:

Plaintiff filed a Motion to set aside dismissal and enter judgment per agreement.

Plaintiff provided notice by mail service, but there is no evidence to corroborate that Defendant resides or receives mail at the particular address. Plaintiff never filed an Answer, and there is no proof of service of summons.

This court does not find that Plaintiff properly notified Defendant of this Motion.

Disposition

This Motion will be continued to 10/6/26, 9am.

Plaintiff to properly notify Defendant with copy of Motion and of hearing date.

9. 9:00 AM CASE NUMBER: L25-09717

CASE NAME: PORTFOLIO RECOVERY ASSOCIATES, LLC VS. GENEVIEVE GARCIA

*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL

FILED BY: GARCIA, GENEVIEVE E

TENTATIVE RULING:

Counsel for Defendant filed a Motion to be relieved as counsel. Counsel provided notice to his client.

The court reviewed the Declaration filed by counsel.

Disposition

Counsel's Motion is granted.